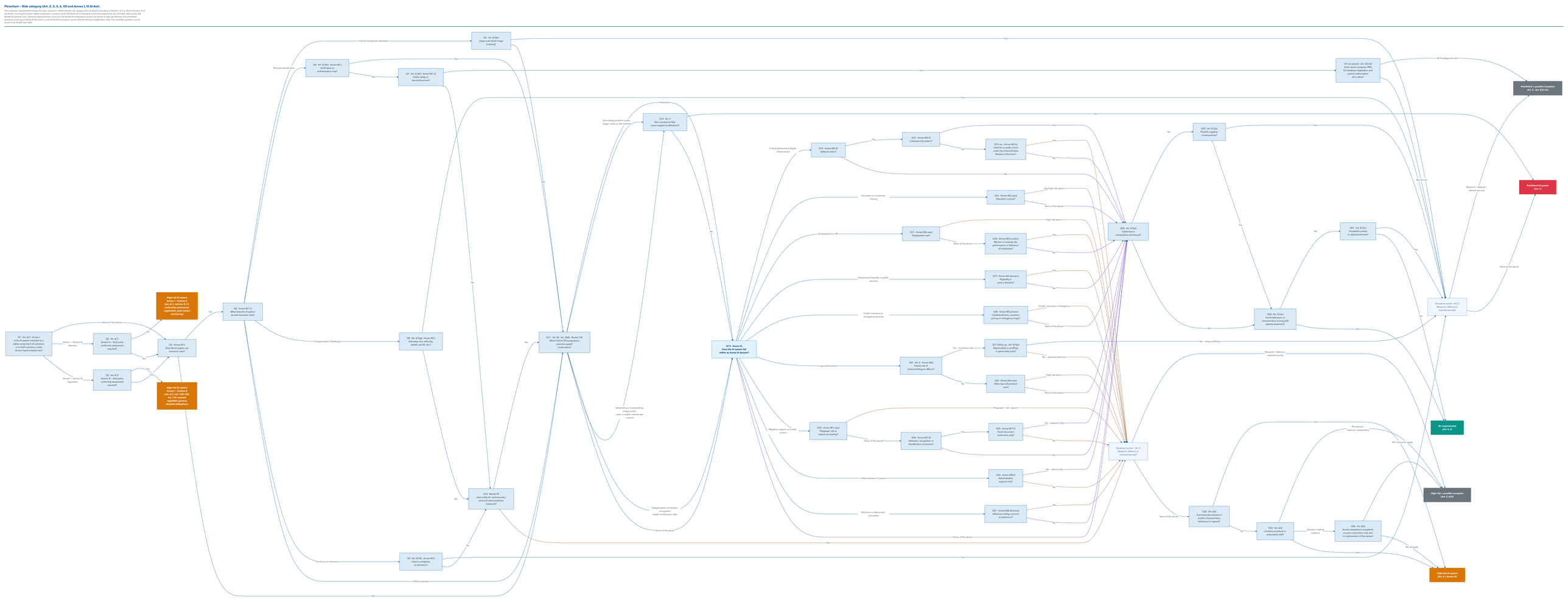

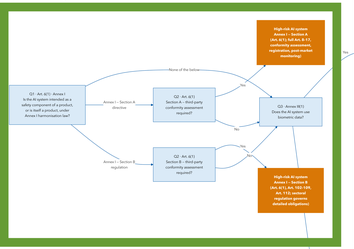

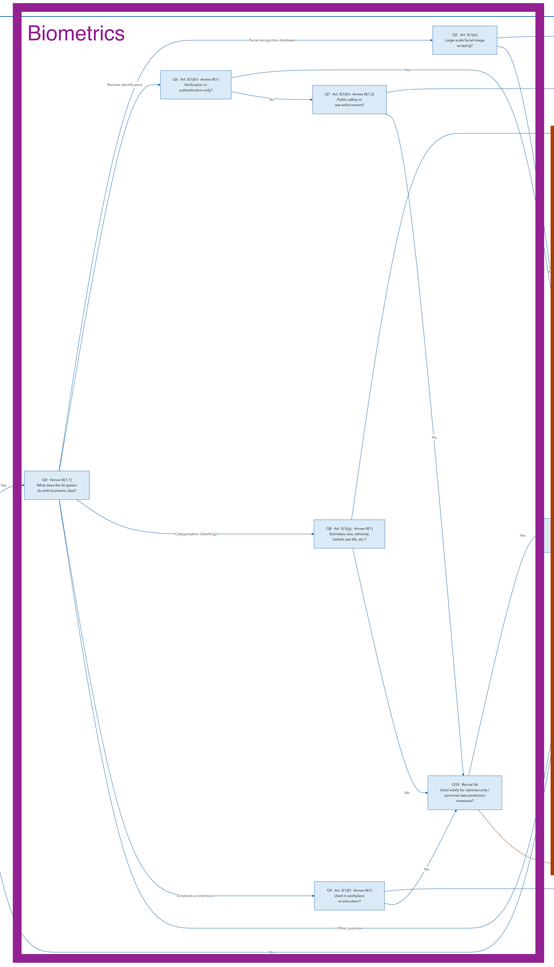

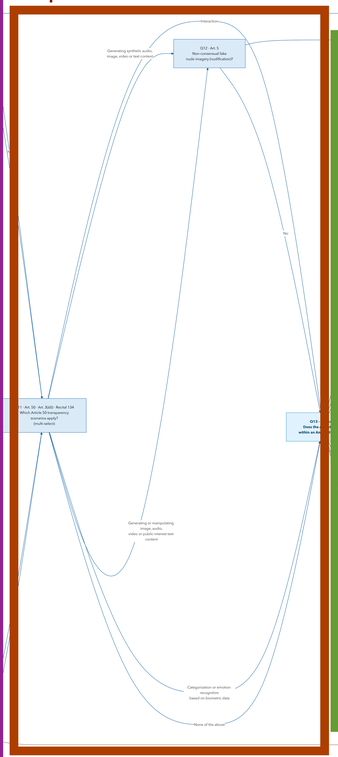

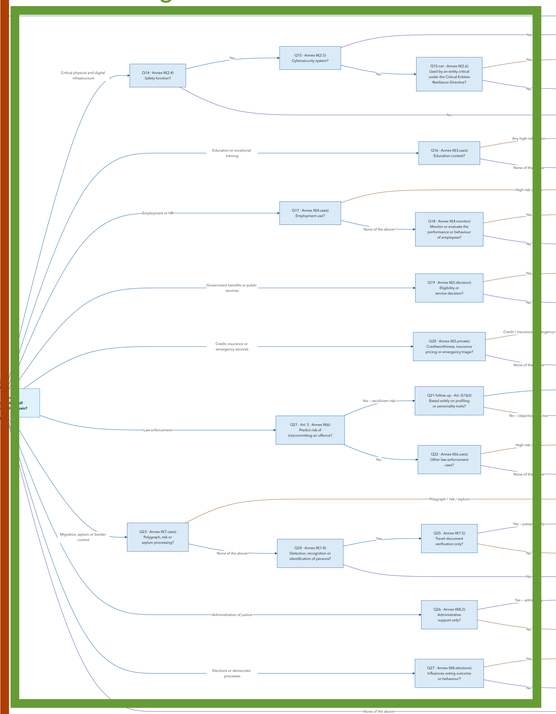

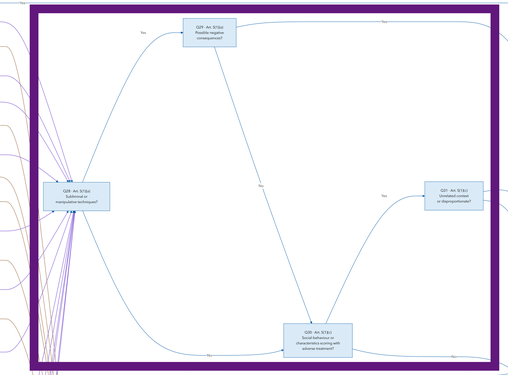

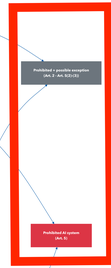

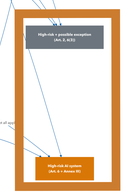

Flowchart – Risk category (Art. 2, 3, 5, 6, 50 and Annex I, III AI Act)

This schematic representation shows the logic required to determine the risk category of an AI system according to Article 2, 3, 5, 6, 50 and Annex I, III of the AI Act, covering the Annex I safety-component / product check, the Article 6(1) third-party conformity assessment, the biometric-data screen, the Recital 54 cybersecurity / personal-data-protection carve-out, the Article 50 transparency screen, the Annex III high-risk domains, the prohibited-practices screening of Article 5(1)(a) and (c), and the Article 2 exception screen with the Article 6 classification rules. The complete questions can be found in the AI AQT tool itself.

Q1 · Art. 6(1) · Annex I
Is the AI system intended as a safety component of a product, or is itself a product, under Annex I harmonisation law?
Annex I – Section A directive
Annex I – Section B regulation
None of the below
Q2 · Art. 6(1)
Section A – third-party conformity assessment required?
Q2 · Art. 6(1)
Section B – third-party conformity assessment required?
Yes
No
Yes
No
High-risk AI system
Annex I – Section A
(Art. 6(1); full Art. 8-17, conformity assessment, registration, post-market monitoring)
High-risk AI system
Annex I – Section B
(Art. 6(1), Art. 102-109, Art. 112; sectoral regulation governs detailed obligations)
Q3 · Annex III(1)
Does the AI system use biometric data?
Yes
No
Q4 · Annex III(1.1)
What does the AI system do with biometric data?
Remote identification
Facial-recognition database
Categorisation (labelling)
Emotions or intentions
Other purpose
Q5 · Art. 5(1)(e)
Large-scale facial-image scraping?
Yes
No
Q6 · Art. 5(1)(h) · Annex III(1)
Verification or authentication only?
Yes
No
Q7 · Art. 5(1)(h) · Annex III(1.2)
Public safety or law enforcement?
Yes
No
Q7-exceptions · Art. 5(2)-(3)
Victim search purpose, FRIA, EU-database registration and judicial authorisation all in place?
All 4 safeguards met
Not all met
Prohibited + possible exception
(Art. 2 · Art. 5(2)-(3))
Q8 · Art. 5(1)(g) · Annex III(1)
Estimates race, ethnicity, beliefs, sex life, etc.?
Yes
No
Q9 · Art. 5(1)(f) · Annex III(1)
Used in workplace or education?
Yes
No
Q10 · Recital 54
Used solely for cybersecurity / personal-data-protection measures?
Yes
No
Q11 · Art. 50 · Art. 3(60) · Recital 134
Which Article 50 transparency scenarios apply?
(multi-select)
Interaction
Generating synthetic audio, image, video or text content
Generating or manipulating image, audio, video or public-interest text content
Categorization or emotion recognition based on biometric data
None of the above
Q12 · Art. 5
Non-consensual fake nude imagery (nudification)?
Yes
No
Q13 · Annex III
Does the AI system fall within an Annex III domain?
Critical physical and digital infrastructure
Education or vocational training
Employment or HR
Government benefits or public services
Credit, insurance or emergency services
Law enforcement
Migration, asylum or border control
Administration of justice
Elections or democratic processes
None of the above
Q14 · Annex III(2.4)
Safety function?
Yes
No
Q15 · Annex III(2.5)
Cybersecurity system?
Yes
No
Q15-cer · Annex III(2.6)
Used by an entity critical under the Critical Entities Resilience Directive?
Yes
No
Q16 · Annex III(3.uses)
Education context?
Any high-risk option
None of the above
Q17 · Annex III(4.uses)
Employment use?
High-risk option
None of the above
Q18 · Annex III(4.monitor)
Monitor or evaluate the performance or behaviour of employees?
Yes
No
Q19 · Annex III(5.decision)
Eligibility or service decision?
Yes
No
Q20 · Annex III(5.private)
Creditworthiness, insurance pricing or emergency triage?
Credit / insurance / emergency
None of the above
Q21 · Art. 5 · Annex III(6)
Predict risk of (re)committing an offence?
Yes – recidivism risk
No
Q21-follow-up · Art. 5(1)(d)
Based solely on profiling or personality traits?
Yes – solely profiling
No – objective facts too
Q22 · Annex III(6.uses)
Other law-enforcement uses?
High-risk option
None of the above
Q23 · Annex III(7.uses)
Polygraph, risk or asylum processing?
Polygraph / risk / asylum
None of the above
Q24 · Annex III(7.4)
Detection, recognition or identification of persons?
Yes
No
Q25 · Annex III(7.5)
Travel-document verification only?
Yes – passport only
No
Q26 · Annex III(8.2)
Administrative support only?
Yes – admin only
No
Q27 · Annex III(8.elections)
Influences voting outcome or behaviour?
Yes
No
Q28 · Art. 5(1)(a)
Subliminal or manipulative techniques?
Yes
No
Q29 · Art. 5(1)(a)
Possible negative consequences?
Yes
No
Q30 · Art. 5(1)(c)
Social-behaviour or characteristics scoring with adverse treatment?
Yes
No
Q31 · Art. 5(1)(c)
Unrelated context or disproportionate?
Yes
No
Exception screen · Art. 2
Research, defence or national security?
Research / defence / national security
None of the above
Prohibited AI system
(Art. 5)
Exception screen · Art. 2
Research, defence or national security?
Research / defence / national security
None of the above
No requirements
(Art. 5, 6)
Q32 · Art. 6(3)
Automatically evaluate or predict characteristics, behaviour or aspects?
Yes
No
Q33 · Art. 6(3)
Limited procedural or preparatory task?
Procedural / improve / preparatory
Decision-making patterns
No
Q34 · Art. 6(3)
Human assessment completed, ex-post comparison only, and no replacement of that review?
All 3 scenarios apply
Not all apply
High-risk + possible exception
(Art. 2, 6(3))
High-risk AI system
(Art. 6 + Annex III)

Flowchart – Risk category (Art. 2, 3, 5, 6, 50 and Annex I, III AI Act)

This schematic representation shows the logic required to determine the risk category of an AI system according to Article 2, 3, 5, 6, 50 and Annex I, III of the AI Act, covering the Annex I safety-component / product check, the Article 6(1) third-party conformity assessment, the biometric-data screen, the Recital 54 cybersecurity / personal-data-protection carve-out, the Article 50 transparency screen, the Annex III high-risk domains, the prohibited-practices screening of Article 5(1)(a) and (c), and the Article 2 exception screen with the Article 6 classification rules. The complete questions can be found in the AI AQT tool itself.

Annex I high-risk domains (safety component or product)
Q1 · Art. 6(1) · Annex I Is the AI system intended as a safety component of a product, or is itself a product, under Annex I harmonisation law?
None of the below
Annex I – Section A directive
Annex I – Section B regulation
Q2 · Art. 6(1) Section A – third-party conformity assessment required?
Q2 · Art. 6(1) Section B – third-party conformity assessment required?
Yes
No
Yes
No
High-risk AI system Annex I – Section A (Art. 6(1); full Art. 8-17, conformity assessment, registration, post-market monitoring)
High-risk AI system Annex I – Section B (Art. 6(1), Art. 102-109, Art. 112; sectoral regulation governs detailed obligations)
Q3 · Annex III(1) Does the AI system use biometric data?
Yes
Biometrics
Q4 · Annex III(1.1) What does the AI system do with biometric data?
Facial-recognition database
Q5 · Art. 5(1)(e) Large-scale facial-image scraping?
Remote identification
Q6 · Art. 5(1)(h) · Annex III(1) Verification or authentication only?
Yes
No
Q7 · Art. 5(1)(h) · Annex III(1.2) Public safety or law enforcement?
Categorisation (labelling)
Q8 · Art. 5(1)(g) · Annex III(1) Estimates race, ethnicity, beliefs, sex life, etc.?
Emotions or intentions
Q9 · Art. 5(1)(f) · Annex III(1) Used in workplace or education?
Other purpose
No
No
No
No
Q10 · Recital 54 Used solely for cybersecurity / personal-data-protection measures?
Yes
Transparency requirements
11 · Art. 50 · Art. 3(60) · Recital 134 Which Article 50 transparency scenarios apply? (multi-select)
Interaction
Generating synthetic audio, image, video or text content
Q12 · Art. 5 Non-consensual fake nude imagery (nudification)?
No
Generating or manipulating image, audio, video or public-interest text content
Categorization or emotion recognition based on biometric data
None of the above
Q13 · ex Does the A all within an An ain?
No
Yes
Yes
Yes
Annex III high-risk domains
Critical physical and digital infrastructure
Q14 · Annex III(2.4) Safety function?
Yes
No
Q15 · Annex III(2.5) Cybersecurity system?
No
Q15-cer · Annex III(2.6) Used by an entity critical under the Critical Entities Resilience Directive?
Yes
Yes
No
Education or vocational training
Q16 · Annex III(3.uses) Education context?
Any high-risk on
None of the ve
Employment or HR
Q17 · Annex III(4.uses) Employment use?
High-risk
None of the above
Q18 · Annex III(4.monitor) Monitor or evaluate the performance or behaviour of employees?
Yes
No
Government benefits or public services
Q19 · Annex III(5.decision) Eligibility or service decision?
Yes
No
Credit, insurance or emergency services
Q20 · Annex III(5.private) Creditworthiness, insurance pricing or emergency triage?
Credit / insurance ergency
None of the ve
Law enforcement
Q21 · Art. 5 · Annex III(6) Predict risk of (re)committing an offence?
Yes – recidivism risk
Q21-follow-up · Art. 5(1)(d) Based solely on profiling or personality traits?
Yes – solely profiling
No – objective s too
No
Q22 · Annex III(6.uses) Other law-enforcement uses?
High-risk
None of the ve
Migration, asylum or border control
Q23 · Annex III(7.uses) Polygraph, risk or asylum processing?
Polygraph / risk / asylum
None of the above
Q24 · Annex III(7.4) Detection, recognition or identification of persons?
Yes
No
Q25 · Annex III(7.5) Travel-document verification only?
Yes – passp ly
No
Administration of justice
Q26 · Annex III(8.2) Administrative support only?
Yes – admi y
No
Elections or democratic processes
Q27 · Annex III(8.elections) Influences voting outcome or behaviour?
Yes
No
None of the above
No
Yes
Subliminal techniques, social scoring, negative consequences, unrelated context etc.
Q28 · Art. 5(1)(a) Subliminal or manipulative techniques?
Yes
Q29 · Art. 5(1)(a) Possible negative consequences?
Yes
No
No
Q30 · Art. 5(1)(c) Social-behaviour or characteristics scoring with adverse treatment?
Yes
Q31 · Art. 5(1)(c) Unrelated context or disproportionate?
Yes
No
No
Exception screen · Art. 2 Research, defence or national security?
Research / defence / national security
None of the above
Filter (profiling, narrow procedural task, complementing human etc.)
Q32 · Art. 6(3) Automatically evaluate or predict characteristics, behaviour or aspects?
Yes
No
Q33 · Art. 6(3) Limited procedural or preparatory task?
Procedural / improve / preparatory
Decision-making patterns
Q34 · Art. 6(3) Human assessment completed, ex-post comparison only, and no replacement of that review?
All 3 scenarios apply
Not all appl
N
Q7-exceptions · Art. 5(2)-(3) Victim search purpose, FRIA, EU-database registration and judicial authorisation all in place?
All 4 safeguards met
Not all met
Exception screen · Art. 2 Research, defence or national security?
Research / defence / national security
None of the above
No
Outcome: Prohibited + exceptions
Prohibited + possible exception (Art. 2 · Art. 5(2)-(3))
Prohibited AI system (Art. 5)
Outcome: No requirements
No requirements (Art. 5, 6)
High-risk + possible exception (Art. 2, 6(3))
High-risk AI system (Art. 6 + Annex III)
Outcome: High risk + exception